

Planning & Development Services Department

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NOTIFICATION OF DECISION COUNTY PLANNING COMMISSION July 7, 2026

Albuquerque Islamic Center
 8900 Menaul Blvd NE
 Albuquerque, NM 87112

SUBJECT: FILE NO: ZBA2026-0001/ZA2026-0024

LEGAL DESCRIPTION: Pat Hauser appeals the Zoning Administrator's approval of a conditional use to allow a church and incidental facilities (ZA2026-0024), on Tract 208B, MRGCD Map 23, located at 9600 2nd St. NW, zoned A-1, containing approximately 3.90 acres. (C-16) (Original request by Prestige Custom Design, LLC, agent for Albuquerque Islamic Center) (DEFERRED FROM THE JUNE 3, 2026 HEARING)

ACTION: DENIED THE APPEAL, THEREBY UPHOLDING THE ZONING ADMINISTRATOR'S APPROVAL OF A CONDITIONAL USE TO ALLOW A CHURCH AND INCIDENTAL FACILITIES (ZA2026-0024)

To Whom It May Concern:

At the July 1, 2026 public hearing, the Board of Adjustment voted to deny the appeal, thereby upholding the Zoning Administrator's approval of a conditional use to allow a church and incidental facilities (ZA2026-0024), on Tract 208B, MRGCD Map 23, located at 9600 2nd St. NW, zoned A-1, containing approximately 3.90 acres. The decision was based on the following Findings and Conditions.

Findings:

1. This is a request for conditional use approval to allow a church and incidental facilities. The applicant seeks approval to construct a mosque and parking area with landscaping and fencing.

County Commissioners

Adriann Barboa, Chair, District 3 - Frank A. Baca, Vice-Chair, District 2
 Barbara Baca, District 1 - Walt Benson, District 4 - Eric C. Olivas, District 5

Elected Officials

Damian R. Lara, Assessor - Michelle S. Kavanaugh, Clerk - Cristy J. Carbón-Gaul, Probate Judge
 John D. Allen, Sheriff - Tim Eichenberg, Treasurer

County Manager

Cindy Chavez

2. The Comprehensive Zoning Ordinance of Bernalillo County defines church as, " A building for public or private worship; or a body or organization of religious believers." This definition applies to any religious institution.
3. The site for the proposed use is adequate in size and shape to accommodate the use, as the property is 3.9 acres in area and provides sufficient area to accommodate site features required by ordinance. No variances were required for the request.
4. The site provides ingress and egress for vehicular access, but the development may require traffic improvements through conditions of approval. Off-street parking and access improvements by the applicant are expected to occur as well as approval from Bernalillo County Public Works through the County's building permit process.
5. The area has a mix of uses and the proposed use will add to that mix. The properties to the south are developed with an automotive service center, retail uses and a plant nursery. Second Street is developed with a mix of uses. The size of the proposed building is proportional to the site but requires modification to more fully integrate with the area. This is addressed through conditions of approval.
6. As an enumerated conditional use within the zoning ordinance, this type of activity is expected to occur from this zone but requires review to determine that the use is compatible with the surrounding area.
7. The applicant intends to provide off-street parking, landscaping, buffer landscaping and fencing in compliance with the requirements of the Comprehensive Zoning Ordinance of Bernalillo County, as shown on this site plan. There will be a six-foot-tall wall along the north side of the site adjacent to the residential use. There will be landscaping along Second Street and along the perimeter of the site to add a buffer next to residential areas.
8. There were several members of the public present at the hearing to testify on the request. In their justification, the applicant stated that use was compatible with surrounding uses, stated a commitment to improve and maintain the property, and that the use provides a buffer between the residential development to the north and the more commercial uses to the south. The applicant also stated that times of the main Friday service could be moved to accommodate traffic patterns. There were comment(s) from the public in support of the request.
9. Multiple public comments were received in opposition to the request stating that the use would generate a large amount of traffic and that it would burden an already busy traffic system.
10. Multiple public comments were received in opposition to the request stating that the building is not compatible with the surrounding area.
11. Staff from public works stated that a Traffic Impact Study would be required at the building permit phase of the project. Road improvements to offset any impacts from the project could be required. The main church service occurs on Friday afternoon out of the peak hour traffic.
12. Second Street is Bernalillo County facility. Alameda Blvd is New Mexico Department of Transportation facility west of Second Street, and a City of Albuquerque Facility east of Second Street.

13. Conditions of approval are necessary to ensure orderly development of the site, as well as the protection of the public health, safety, and general welfare in conformity with the intended purpose of the Zoning Ordinance.
14. The site is within the Rural Area of the Comprehensive Plan.
15. Approval is limited to the requested church use and does not waive any other requirement or imply any other approval of applicable Bernalillo County ordinances and/or regulations.

Conditions:

1. This is an approval of a Church and incidental uses. A school is not allowed on the subject site.
2. The applicant shall acquire all necessary construction and trade permits for proposed modifications to the subject site, including, but not limited to, a commercial County building permit. Additions to the site beyond this building square footage shall require consideration of a new conditional use permit application.
3. The size of the building shall be limited to a maximum of 60,000 square foot floor area, and a building footprint of 43,000 in order to address concerns about the amount of traffic generated by this use and to improve compatibility with the surrounding area.
4. The applicant shall coordinate with the Public Works department to reduce the amount of asphalt and impervious surface on the site, such as only paving the drive aisles and accessible parking spaces and leaving a depressed drainage area for landscaping and using gravel or other pervious material for parking areas.
5. No amplified sound or loudspeakers are allowed outside of the proposed building.
6. The building shall meet all setback, separation, height, and area requirements of the A-1 zone as indicted in Section 7 of the Comprehensive Zoning Ordinance of Bernalillo County. Height is limited to 26 feet without exception.
7. Parking shall be provided as required in Section 21 of the Comprehensive Zoning Ordinance of Bernalillo County. Parking areas can utilize permeable surfaces as approved by County Public Works and County Fire.
8. Landscaping shall be provided as required in Section 19 of the Comprehensive Zoning Ordinance of Bernalillo County. Landscaping shall also meet the requirements of the County's Water Conservation Ordinance and shall be maintained and replaced as required by the Comprehensive Zoning Ordinance of Bernalillo County.
9. A Traffic Impact Study will be required at the building permit phase of the project. Road improvements may be required to offset any impacts from the project.
10. Future development must meet requirements for New Mexico Department of Transportation facilities.

11. A solid wall or fence at least 6' in height shall be installed along the perimeter of the property that abuts current or future single-family dwellings.
12. Lighting shall meet the requirements of the County's Light Pollution Ordinance and the State of New Mexico's Night Sky Protection Act.
13. Signage shall be limited to meet the requirements of the County's Section 12 O-1 zone of the Comprehensive Zoning Ordinance of Bernalillo County.
14. A grading and drainage plan shall be submitted with the required building permit and shall meet all requirements of Bernalillo County Public Works.
15. All uses on the site shall comply with the County's Noise Ordinance.

This decision is final unless it is appealed by 12:00 noon on **July 22, 2026** in the manner described below. A filing fee of \$75.00 is required for properties consisting of one (1) acre or less, and \$100.00 is required for all others.

APPEALS: Appeal of any denial or approval of a decision by the Board of Adjustment may be submitted in writing to the Office of Planning and Development Services within 15 days after the date of the notice of decision by the Board of Adjustment.

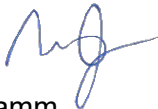
The date of the notice of decision in question shall not be included in the 15-day period for filing an appeal, and if the fifteenth day falls on a Saturday, Sunday or holiday, the next working day shall be considered as the deadline for filing the appeal.

A building permit or Certificate of Occupancy & Compliance shall not be issued until any appeal is decided, or the time for filing such appeal has expired.

WRITTEN NOTICE OF APPEAL SHALL BE FILED WITH THE PLANNING AND DEVELOPMENT SERVICES DEPARTMENT ON THE PRESCRIBED FORM ALONG WITH PAYMENT OF THE REQUIRED FILING FEE.

If you have any questions, please feel free to contact me directly at (505) 314-0384.

Sincerely,



Nick Hamm
Planning Director

EL/nsc

cc: File
Kevin Grovet, Public Works
Raeleen M. Bierner-Garcia, Public Works
Julie A. Luna, Public Works
Megan Marsee, Natural Resources
Dan McGregor, Natural Resources
Maggie Gould, Zoning Administrator